

3.

CASE #	CASE NAME	HEARING NAME
CVRI2503127	GARCIA vs MEHTA	MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF'S FORM INTERROGATORIES, SET ONE, SPECIAL INTERROGATORIES, SET ONE, AND REQUESTS FOR PRODUCTION, SET NO. ONE

Tentative Ruling:

Moving party:

Plaintiff Alejandro Barrera Garcia
Represented by: Adamson Ahdoot, LLP

Responding party:

Defendant Aarti Mehta
Represented by: Wood Smith Henning & Berman LLP

This is a motor vehicle negligence case. On August 11, 2023, Plaintiff Alejandro Barrera Garcia ("Plaintiff") was driving his vehicle on Magnolia Avenue, east of South Temescal Street in Corona when Defendant Aarti Mehta ("Defendant") collided with his vehicle while it was at a complete stop causing him personal injuries.

On June 6, 2025, Plaintiff filed his complaint for negligence. On August 18, 2025, Defendant filed a cross-complaint against Roe Cross-Defendants for 1) indemnity; 2) contribution; 3) declaratory relief; and 4) apportionment of fault.

Plaintiff now moves to compel Defendant to provide further, complete, and Code-compliant verified responses without objections, to certain Form Interrogatories, Set One ("FROGs"); Special Interrogatories, Set One ("SPROGs"); and Requests for Production of Documents, Set One ("RPDs"). Plaintiff contends all of the responses identified in the motion are inadequate or deficient and that Plaintiff is entitled to full and adequate responses to the inquiries, and those have not been provided. Plaintiff frames the meet-and-confer as satisfied by a comprehensive meet-and-confer letter on March 31, 2026, Defendant's refusal to supplement, and a May 28 telephonic conference, all within the 45-day window. Plaintiff also requests the court impose monetary sanctions against Defendant and her counsel in the amount of \$3,600.

In opposition, Defendant counters that Plaintiff originally filed this motion prior to engaging in appropriate meet and confer correspondence as required by C.C.P., § 2016.040 and failed to properly meet and confer in good faith after Defense counsel insisted on a meet and confer conference. Defendant characterizes the March 31 letter as a vague pre-response threat, points to Plaintiff's 21-day demand to cure nearly 100 disputed responses, and asks the court to deny the motion and award sanctions against Plaintiff.

As of 8/18/26 there is no reply.

Analysis

A party may file a motion compelling a further response to interrogatories and requests for production if it finds that the responses are inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (C.C.P., §§ 2030.310, 2031.300.) In a motion to compel further responses to interrogatories, the burden is on the responding party to justify any objection or failure to answer the interrogatories fully. (*Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.) The motion to compel further responses to requests for production of documents “shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (C.C.P., § 2031.310(b)(1); *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) To establish “good cause,” the burden is on the moving party to show both relevance to the subject matter and specific facts justifying discovery. (*Glenfed Develop. Corp. v. Sup. Ct.* (1997) 53 Cal.App.4th 1113, 1117.) Once good cause is established, the responding party has the burden to justify any objections made to document disclosure. (*Kirkland, supra*, 95 Cal.App.4th at 98.)

Unless notice of the motion is given within 45 days of the service of the response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (*Id.* at §§ 2030.300(c), 2031.310(c).) Responses were served April 9, 2026 and the motion was timely filed May 7, 2026.

The parties are required to meet and confer. (C.C.P., §§ 2030.300(b), 2031.310(b), 2033.290(b).) A single letter followed by a response of refusal may be sufficient in certain circumstances to constitute a proper meet and confer. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432.) However, the court will also consider the time available before the motion deadline, the extent to which the responding party was complicit in the lapse of time, and the prospects of success through meet and confer. (*Id.* at 432-433.) A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clemente v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.) Arguments and debates do not constitute an earnest attempt to resolve discovery disputes. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1293.) The parties must present the merits of the respective positions, and “[o]nly after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.” (*Id.* at 1293 [internal quotation marks omitted].)

Inadequate meet-and-confer efforts may be remedied by continuance and tailored orders rather than automatic denial, and that the statutory meet-and-confer process is designed to reduce the burden on the courts by requiring parties to attempt in good faith to resolve discovery disputes informally before seeking judicial intervention. (*Obregon, supra*, 67 Cal.App.4th at 433-435.)

The record before the Court reflects the following chronology:

- March 31, 2026 – Plaintiff’s counsel served a meet-and-confer letter addressing “discovery issues generally” and Defendant’s anticipated refusal to participate pending Defendant’s criminal case. (Stefanic Decl. ¶ 5.)
- April 9, 2026 - After extensions granted as a professional courtesy, Defendant served verified responses to all three sets of discovery. (Stefanic Decl. ¶ 4.)
- April 10, 2026 - Counsel discussed the responses by telephone. The same day, Defendant filed a Motion to Stay Discovery stating she would not appear for deposition, supplement responses, or engage in further meet-and-confer pending the criminal matter, citing Fifth Amendment concerns.
- May 26, 2026 - Plaintiff filed the motion to compel further responses. (Posey Decl. ¶ 2.)
- May 27, 2026 - Plaintiff sent a detailed meet-and-confer letter "pars[ing] down the issues" in preparation for the next-day conference.
- May 28, 2026 - The parties held a telephonic meet-and-confer at which Defense counsel raised the possibility of a liability stipulation that would moot the written-discovery disputes. (Posey Decl. ¶ 14.) Plaintiff refiled the motion the same day. (Posey Decl. ¶ 18.)

The chronology reveals several gaps in the meet and confer record that warrant further process. Specifically, the March 31 letter pre-dates the responses it purports to address. Paragraph 5 of the Stefanic Declaration states the March 31 letter was served “after a careful review of Defendant’s responses,” but paragraph 4 fixes service of those responses at April 9 (nine days later). A letter sent on March 31 could not have identified specific deficiencies in responses not yet served, and by counsel’s own description it addressed discovery issues “generally.” Moreover, the itemized meet-and-confer post-dates the filing. The May 27 letter and the May 28 conference, the first response-by-response engagement in the record, both occurred after the May 26 filing. The sequence indicates the motion was filed to preserve the 45-day period under sections 2030.300(c) and 2031.310(c), with substantive conferral occurring afterward. Section 2016.040’s requirement of good-faith conferral over “each issue presented by the motion” was thus not satisfied before filing. Plaintiff invokes Defendant’s April 10 Motion to Stay to explain why further pre-filing conferring appeared futile. With the stay motion now withdrawn and the criminal matter resolved, that impediment no longer exists, and the ordered process can proceed on the merits.

Accordingly, Court orders the parties to meet and confer via videoconference or in person within 21 days of this order. 5 court days before the continued hearing date, the parties shall file a joint status report identifying: Each response as to which the

parties reached agreement, with a brief description of the resolution; Each response that remains in dispute, with a brief statement (no more than two sentences per response) of each party's position on that response; and A statement certifying that counsel met and conferred in person or by videoconference and the date, duration, and attendees of that conference. No further briefing is allowed.

Continue hearing on the motion to 10/21/2026 at 8:30 for further meet and confer efforts.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504666	RODRIGUEZ vs CITY OF BEAUMONT	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The Demurrer is unopposed. Accordingly, the Demurrer is sustained without leave to amend. Moving party is to provide the Court with an order of dismissal and give notice of ruling. All future hearing dates are vacated, and the matter is dismissed in its entirety.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2507384	MADELINE FOX vs COUNTY OF RIVERSIDE	DEMURRER ON 1ST AMENDED COMPLAINT (x3)

Tentative Ruling:

These three Demurrers have all be continued to 9/15/2026 for hearing.